

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. on the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

September 4, 2026

#	Case Name	Tentative
1.	Pham vs. Solar Mosaic LLC 26-01577688	Motion to Appear Pro Hac Vice The application of attorney Sargina M. Desargones to appear pro hac vice as counsel for defendant Concord Servicing LLC in this matter is hereby GRANTED, pending proof of payment of the application fee to the California State Bar, by September 21, 2026. Moving Attorney failed to attach proof of payment of the application fee to the State Bar. (CRC, Rule 9.40.) Moving Attorney to give notice. THIS RULING IS FINAL.

2.	Zimmerman vs. Pancho's Restaurant, Inc. 24-01427702	Motion to Be Relieved as Counsel of Record The motion of attorney Andrea R. Sitar of Pleiss, Sitar, McGrath, Gates & Ajello to withdraw as attorney of record for defendant Pancho's Restaurant, Inc. is GRANTED effective upon filing of the proof of service upon the client. (Code Civ. Proc. § 284, CRC 3.1362.) Moving attorney is to give notice. THIS RULING IS FINAL.
3.	Remery vs. Extra Space Management, Inc. 26-01559803	Motion to Compel Arbitration Defendant Extra Space Management, Inc.'s unopposed Motion to Compel Arbitration is GRANTED. Defendant moves to compel arbitration pursuant to the Federal Arbitration Act ("FAA"), 9 U.S.C. §§ 1-16, and Code of Civil Procedure section 1281 et seq. The FAA "applies where there is 'a contract evidencing a transaction involving commerce.'" (<i>Allied-Bruce Terminix Companies, Inc. v. Dobson</i> (1995) 513 U.S. 265, 277 [quoting 9 USC § 2] [emphasis in original].) A court's role in considering a petition to compel arbitration under the FAA is limited to "determining (1) whether a valid agreement to arbitrate exists and, if it does, (2) whether the agreement encompasses the dispute at issue. If the response is affirmative on both counts, then the Act requires the court to enforce the arbitration agreement in accordance with its terms." (<i>Chiron Corp. v. Ortho Diagnostic Sys. Inc.</i> (9th Cir. 2000) 207 F.3d 1126, 1130.) "In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (<i>Ibid.</i>)

Existence of Arbitration Agreements

Under Code of Civ. Proc. §1281.2, the first thing the Court must decide is whether there was an agreement to arbitrate, a meeting of the minds. (*Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1169.) This analysis is no different under the Federal Arbitration Act (“FAA”) – there must be an agreement in writing to submit a controversy to arbitration. (9 U.S.C.A. § 2.)

“In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 51 [cleaned-up].)

Defendant attaches the 5/25/19 Rental Agreement between Plaintiff and Defendant to lease storage unit C233R at the Extra Space Storage facility in Westminster. Paragraph 31 and Addendum to the Rental Agreement contains a mutual agreement to arbitrate.

The arbitration provision applies to “any claims or controversies...related in any way...to this Rental Agreement, the Occupant’s use or occupancy of the Space...or property damage.” Plaintiff asserts claims for improperly imposed charges, lien-related publication fees; noncompliance with lien sale publication requirements, unlawful and unfair business practices, and negligence. Each of these claims arises directly out of, or relates to, the Rental Agreement and Plaintiff’s use of the storage unit, and is thus covered by the arbitration provision.

The Court finds Defendant has sustained its burden of demonstrating the existence of an agreement to arbitrate.

Plaintiff has not opposed the motion or disputed the validity of the arbitration agreement.

Accordingly, the motion is GRANTED, and the action is STAYED pending completion of arbitration.

		The Court now vacates all future court dates, including the CMC scheduled for September 10, 2026. A Review Hearing re: Arbitration is scheduled for July 22, 2027, at 9:30 a.m. in Department C12. Joint Status Report to be filed by July 1, 2027. Moving party to give notice of this ruling.
4.	Allstate Insurance Company vs. East Nine Condominium Association 25-01479772	Motion to Compel Production CONTINUED
5.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	Motion to Compel Production CONTINUED
6.	Gombu, LLC vs. Do Builder and Design, Inc. 23-01367281	1. Motion to Compel Arbitration 2. Motion to Compel Further Responses to Special Interrogatories Motion to Compel Arbitration Plaintiff Gombu, LLC's Motion to Compel Arbitration is CONTINUED to November 13, 2026, at 9:30 a.m. in Department C12. Plaintiff's proof of service does not state the electronic service address of the declarant, as required by Code Civ. Proc. §1013b, subd. (b)(1). In light of the fact that no opposition to this motion has been filed, the Court is concerned that Defendants were not given appropriate notice of the hearing of this motion. Within 7 days of this ruling, Plaintiff shall re-serve the Motion to all Parties and file a valid proof of service of the same that complies with the requirements of Code Civ. Proc. §1013b. Defendants' deadline to file an opposition to the motion shall be calculated based upon the continued hearing date.

		Plaintiff Gombu, LLC’s Motion to Compel Answers to Interrogatories Plaintiff Gombu, LLC’s Motion to Compel Answers to Interrogatories is DENIED as MOOT. Defendant Do Builder and Design, Inc. has established that it has, subsequent to the filing of this motion, served responses to the subject discovery requests. The motion, however, is not moot as to the issue of monetary sanctions. (See <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 409 [court’s discretion where responses served after motion filed].) Defendant Do Builder and Design, Inc. shall pay monetary sanctions in the amount of \$510 to Plaintiff within 60 days of this ruling. Plaintiff shall provide notice of both of these rulings.
7.	Radner vs. FCA US, LLC. 25-01460933	Motion to Compel Production Plaintiff Marc Radner’s motion to compel compliance with California Code of Civil Procedure § 871.26 by producing all documents required under subdivisions (h)(6), (h)(7), (h)(8), (h)(9), (h)(10), (h)(12), and (h)(13) is denied as moot. Radner’s complaint no longer contains violation of express warranty claims. The third cause of action for violation of Civil Code section 1793.2(a)(3) does not trigger the initial disclosure requirements of Code of Civil Procedure section 871.26. Section 1793.2(a)(3) imposes a statutory duty on manufacturers to make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. This is a separate statutory obligation that exists independently of whether the manufacturer failed to repair the vehicle to conform to the applicable express warranties after a reasonable number of attempts. Section 871.26 only applies to actions seeking restitution or replacement pursuant to Section 871.20, and Section 871.20(a) explicitly limits the chapter’s application to actions “seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code” where “the request for restitution or replacement is based on noncompliance with the applicable express warranty.” A standalone claim under Section 1793.2(a)(3) for failure to provide service literature and parts to repair facilities does not seek restitution

		or replacement of the vehicle—it addresses the manufacturer's infrastructure obligations to support warranty repairs. Unless the plaintiff also asserts a claim seeking restitution or replacement based on the manufacturer's inability to repair the vehicle to conform to express warranties after a reasonable number of attempts under Section 1793.2(d)(2), the mandatory disclosure provisions of Section 871.26 would not apply. The Court imposes sanctions against Defendant and it's counsel in the amount of \$2,500 pursuant to CA Code of Civil Procedure section 871.26(j)(1). The Case Management Conference is VACATED, and the Court now sets this matter for a jury trial on January 14, 2027, at 11:00 a.m. in Department C12. Jury fees have been paid. Plaintiff Radner to give notice.
8.	Martinez vs. American Honda Motor Co., Inc 25-01452341	Motion to Compel Deposition (Oral or Written) Plaintiffs Lexi Winslow and Leslie Martinez's motion to compel the continued deposition of defendant American Honda Motor Co., Inc.'s Person Most Knowledgeable is granted. To be clear, however, the Court agrees with Honda the PMK is not necessarily Defendant's Field Technical Specialist Sean M. The deposition shall occur by September 30, 2026. Sanctions are denied. Plaintiff to give notice.
9.	Ingram vs. Bastidas 24-01374235	Motion to Compel Deposition (Oral or Written) Defendants Xavier Chavarin Bastidas and JL Xpress, Inc.'s Motion to Compel Non-Party Mercedes Benz of Long Beach aka Long Beach Eurocars LLC ("MBLB") to respond to a third-party deposition subpoena is GRANTED in part. (Code Civ. Proc. §2025.480.) MBLB shall make itself available by October 9, 2026 for a deposition to be taken by remote means of the person most knowledgeable "concerning a slip and fall incident that occurred on or about December 16, 2022, involving Iris Inez Ingram at Mercedes of Long Beach, 2300 E. Spring St., Signal Hill, CA 90755"

	The Parties may meet and confer and agree to an alternative date, time, and location for the deposition to take place without further leave of court. Additionally, within 45 days, but no later than 3 days prior to the date set for the deposition of MBLB’s person most knowledgeable, shall respond to Request for Production of Documents, Request Nos. 1 and 4 narrowed as follows: REQUEST FOR PRODUCTION NO. 1: All DOCUMENTS in YOUR file related to the INCIDENT, including but not limited to all photographs, videos, video surveillance, or other images that depict and/or refer to the INCIDENT. Responding Party need not produce any documents that are communications between Responding Party and its attorney or documents generated by Responding Party’s attorneys in the course of litigation of Plaintiff’s claims against Responding Party. REQUEST FOR PRODUCTION NO. 4: All COMMUNICATIONS in YOUR file between YOU or YOUR attorneys on the one hand, and IRIS INEZ INGRAM or her attorneys, on the other hand, that refer to the injuries IRIS INEZ INGRAM claimed to have sustained as a result of the INCIDENT. Responding Party need not produce any documents directly referencing the confidential settlement agreement or its terms. Rather, this Request encompasses communications that directly reference the injuries IRIS INEZ INGRAM sustained and any contentions that such injuries relate to the INCIDENT. MBLB objects to the subpoena and document requests on the grounds of privacy and attorney-client privilege and work-product protection. The party claiming a violation of the constitutional right of privacy must “[1] establish a legally protected privacy interest, [2] an objectively reasonable expectation of privacy in the given circumstances, [3] and a threatened intrusion that is serious.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552, citing <i>Hill v. National Collegiate Athletic Assn.</i> (1994) 7 Cal.4th 1, 35-37). The court must balance whether the invasion of the privacy interest is justified by a competing interest. (<i>Hill v. National Collegiate Athletic Ass’n</i>, supra., 7 Cal.4th at 38.)
--	--

		While the party seeking the discovery need not always show a “compelling need” for the discovery, “when a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion.” (<i>Williams</i>, supra, 3 Cal.5th at 556.) The discovery must be “directly relevant” and it is not enough if the discovery might lead to admissible evidence. (<i>Board of Trustees v. Superior Court</i> (1981) 119 Cal.App.3d 516, 526, disapproved of on other grounds by <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531.) Here, the facts of the slip and fall incident that took place on MBLB’s premises and the injuries Plaintiff has claimed as a result of that incident are directly relevant to the claims and defenses in this lawsuit and thus are a proper subject of discovery regardless of the privacy interest in preserving the confidentiality of the ultimate settlement of Plaintiff’s claims against MBLB. The Court has taken into consideration MBLB’s privacy, privilege and work-product objections. The Document requests have been appropriately narrowed to (1) exclude the production of materials subject to attorney client privilege or work product protection and (2) to balance Defendants’ interest in obtaining discovery of information directly relevant to the claims and defenses in this lawsuit with the privacy interests of MBLB and Plaintiff in the confidentiality of the settlement agreement between them. Moving Party and MBLB’s requests for monetary sanctions are DENIED. Defendants shall provide notice.
10.	Alvarenga vs. Ragen 24-01409779	Motion to Compel Physical/Mental Examination CONTINUED
11.	Patino vs. Gibson 25-01531266	Motion to Compel Answers to Form Interrogatories (X2) OFF CALENDAR

12.	Hooper vs. Coastal Animal Services Authority 26-01545384	Demurrer to Amended Complaint Defendants, Coastal Animal Services Authority, City of Dana Point and City of San Clemente’s demurrer to each of the two causes of action in Daniel Hooper and Karlee Hooper’s First Amended Complaint is sustained in its entirety. 1st cause of action for Violation of California Constitutional Due Process The Court agrees with CASA’s position that there is no constitutional tort cause of action for damages to remedy an asserted violation of the due process liberty interest under article I, section 7(a). <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300. The <i>Katzberg</i> court examined the drafting history of the state due process clause and concluded that it did not indicate an intent to permit an implied right of action for damages, and that a damages action was not contemplated by tort law. The Court of Appeal in <i>City of Simi Valley v. Superior Court</i> (2003) 111 Cal.App.4th 1077 applied <i>Katzberg</i> directly, confirming that a plaintiff may not sue for damages based on a violation of article I, section 7 of the California Constitution. Accordingly, a dog owner whose pet is wrongfully detained by a government actor cannot recover damages by invoking the state due process clause alone. The Court sustains the demurrer to this cause of action. 2nd cause of action for negligence Decisions to seize and impound dogs are discretionary acts that do not create mandatory duties enforceable through negligence claims. In <i>Danielson v. County of Humboldt</i> (2024) 103 Cal.App.5th 1, the Court of Appeal examined a county ordinance provision authorizing animal control officers to seize and impound potentially dangerous dogs, finding it clearly discretionary because it stated the officer “may” seize and impound the dog and did not mandate seizing or impounding any dog. Similarly, in <i>County of Los Angeles v. Superior Court</i> (2012) 209 Cal.App.4th 543, the court held that even if an investigating officer had reviewed prior complaints in the animal control database, the county would not have had an obligation to petition the court to declare a dog potentially dangerous or to seize and impound a dog. The court emphasized that the duty in question involved permissive and discretionary decisions and conduct, distinguishing it from mandatory ministerial duties that could support
------------	--	--

liability under Government Code section 815.6. *County of Los Angeles v. Superior Court* (2012) 209 Cal.App.4th 543.

The discretionary nature of impoundment decisions means that a plaintiff generally cannot establish the mandatory duty element required for public entity liability under the Government Claims Act. Without a mandatory duty imposed by statute, a negligence claim against a city for wrongful detention fails as a matter of law.

But Hoopers have alleged a “mandatory” duty on the part of CASA that was allegedly breached. These allegations are at paragraphs 78-80.

The Dana Point Municipal Code sections 10.05.020 and 10.05.030 require officials to investigate reports and review facts but still leave the ultimate determination of whether to seize the dog to the officer's judgment about dangerousness or public safety. That duty remains discretionary and does not support a negligence claim. However, if the ordinance eliminates discretion by mandating seizure whenever specific factual criteria are met (for example, "shall seize any dog that has bitten a person on two occasions"), and the plaintiff can show the city failed to follow those mandatory procedures, a negligence claim under section 815.6 might survive.

The Court finds none of the “mandatory” language quoted in the complaint requires CASA to detain or release the subject dog. The statutory language requires CASA to **investigate reports that an animal has attacked a person, review the applicable facts relating to such a report and to make determinations based upon that review and imposes mandatory limitations on pre-hearing impoundment.**

The Court finds the allegations do not suffice to state a claim under Government Code section 815.6 because they describe duties that require the exercise of discretion rather than ministerial acts with clear implementing guidelines. Even when a statute uses mandatory language like “shall,” the duty remains discretionary if officials must exercise significant judgment in performing it.

Based on the above, the Court sustains the demurrer to the 2nd cause of action.

Lastly, the Court is mindful of the strenuous defense position that leave to amend should be denied because it is unlikely Plaintiff will be able to plead a viable cause of action against Defendants.

		Nevertheless, the Court in its discretion shall grant leave for Plaintiff to file such an amendment. Plaintiffs shall have 21 days leave to amend the complaint. The Case Management Conference is CONTINUED to March 18, 2027, at 9:30 a.m. in Department C12. CASA to give notice.
13.	Raymond James Financial Services, Inc vs. Robinson 26-01563657	Motion for Preliminary Injunction Raymond James Financial Services, Inc. [“Raymond James”] and Yvan Huu Cao’s motion for a preliminary injunction against defendant Paul Stewart Robinson from prosecuting FINRA Arbitration Case No. 26-00105, and for related declaratory relief that no agreement or enforceable obligation to arbitrate exists as to Robinson’s claims under FINRA Rule 12200, is DENIED. (Code Civ. Proc., § 526, subd. (a) [authorizing injunctive relief]; <i>Costa Mesa City Employees’ Assoc. v. City of Costa Mesa</i> (2012) 209 Cal.App.4th 298, 305-306 [“To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits ... [i]f the threshold requirement of irreparable injury is established, then we must examine two interrelated factors to determine whether the trial court’s decision to issue a preliminary injunction should be upheld: ‘(1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction;’” internal citations omitted]; <i>O’Connell v. Superior Court</i> (2006) 141 Cal.App.4th 1452, 1481 moving party has burden “to show all elements necessary to support issuance of a preliminary injunction”].) Moving parties’ request for judicial notice [RJN] is GRANTED. (Evid. Code, § 452, subds. (d), (h).) As to Exs. A, A-1 through A-5, and C judicial notice is limited to the fact that the documents were filed, but not of the truth of their contents. (Evid. Code, § 452, subd. (d)(1) [court records]; <i>Dominguez v. Bonta</i> (2022) 87 Cal.App.5th 389, 400 [“Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, <i>but do not take judicial notice of the truth of the factual matters asserted in those documents;</i>” emphasis in original, internal citation omitted]; <i>In re Vicks</i> (2013) 56 Cal.4th 274, 314 [“while courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice

of the truth of hearsay statements in decisions and court files”]; *Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, FN 7 [judicial notice of truth of matters in court records ordinarily limited to “orders, statements of decision, and judgments”].)

As to injunctive relief, moving parties have not shown a probability of prevailing on the merits of their cause of action for declaratory relief. (*Costa Mesa City Employees' Assoc. v. City of Costa Mesa*, *supra* at 305-306.) Moving parties contend that defendant does not have standing under their client agreement with decedent Patricia Robinson to pursue arbitration before FINRA, having been divested of trust beneficiary status, and further does not qualify as a customer under FINRA Rule 12200. (Moving papers at 7:4-10:7; see also Ex. D to Cao Decl. [client agreement].)

The client agreement includes an arbitration provision stating:

Any dispute or controversy, either arising in the future or in existence now, between me and you (including your officers, directors, employees or agents and the introducing broker, if applicable) will be resolved by arbitration conducted before the Financial Industry Regulatory Authority (FINRA), subject to the jurisdiction of the Securities and Exchange Commission (SEC) pursuant to the FINRA Arbitration Code, and in accordance with the Federal Arbitration Act (Title 9 of the United States Code). (Ex. D to Cao Decl., p. 9, ¶ (a).)

The client agreement defines “me” as “the undersigned and any other actual or beneficial owner of property in this account.” (*Id.*, p. 6, first paragraph; emphasis added.) However, moving parties have not shown that defendant was not, or is not, a “beneficial owner” of any property in any account, as they contend.

First, there is no evidence that “[p]ursuant to the terms of the 2011 Client Agreement, Plaintiffs would provide investment, securities, and financial planning services and invest the Trusts’ assets for the beneficiaries of the Trusts.” (Moving papers at 3:14-16, 8:4-19.) The client agreement (Cao Decl., Ex. D) only lists Patricia Robinson as an individual, not as a trustee of either the Family Bypass Trust or the Surviving Spouse’s Trust (RJN, Ex. A-2). The client agreement is also heavily redacted, and there is no way to determine the source of any assets in the accounts, or that their purpose was to manage assets of either Trust. Nor is there any other evidence supporting moving parties’ contention that the client agreement pertained to financial planning and investment of the assets of either Trust, as represented in

the moving papers. (*Gilman v. Dalby* (2021) 61 Cal.App.5th 923, 940 [“statements in motions are not evidence”].)

Second, even if moving parties had provided evidence that the client agreement pertained to Trust assets, their standing argument relies on a “First Amendment and Restatement of The Wholly Amended Robinson Family Surviving Spouse’s Trust Agreement Dated January 9, 2006” which removed defendant as a beneficiary of that Trust. (RJN, Ex. A-4.) However, judicial notice of this document is limited to the fact that it was filed, as stated above, and plaintiffs have not provided any other evidence authenticating it, or showing its validity and truthfulness. Further, defendant’s Petition in Case No. 2023-01341473 disputes that this document was valid, based on Patricia Robinson’s alleged history of dementia and head trauma, as well as Madeleine Robinson’s alleged undue influence. (RJN Ex. A, ¶¶ 17-20, 35-37; see also *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114–115 [“For a court to take judicial notice of the meaning of a document ... based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper”].)

Third, moving parties have not provided any evidence that defendant was ever removed as a beneficiary of the “Family Bypass Trust.” (RJN, Ex. A-1, Article 3 [division of trust upon death of first settlor], Article 6 [“At the surviving spouse's death, the trustee shall distribute the remaining trust estate to the settlors' then-living descendants, by right of representation”]; see also RJN Ex. A-2 [declaration of trust split acknowledging both trusts].)

Plaintiffs also contend that defendant is not entitled to seek arbitration under FINRA Rule 12200 because he is not and was not a client or customer. However, this argument relies on the same purported lack of beneficiary status (moving papers at 7:12-8:21), which arguments fail as discussed above.

Moving parties have also not shown that the settlement agreement in Case No. 2023-01341473 estops defendant from seeking arbitration, inasmuch as moving parties were not parties to that action, nor did defendant assert any claims against them. (*CytoDyn of New Mexico, Inc. v. Amerimmune Pharmaceuticals, Inc.* (2008) 160 Cal.App.4th 288, 299, fn. 9, citing *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986-987 [judicial estoppel elements]; *In re Marriage of Brinkman* (2003) 111 Cal.App.4th 1281, 1289 [traditional estoppel elements].)

Moving parties also fail to show any purported irreparable harm, other than costs to be incurred in defending the FINRA arbitration, which is

	generally insufficient absent exceptions not present here [such as insolvency or to prevent dissipation of specified funds]. (<i>Department of Fish & Game v. Anderson-Cottonwood Irrigation Dist.</i> (1992) 8 Cal.App.4th 1554, 1565 [“an injunction is an unusual or extraordinary equitable remedy which will not be granted if the remedy at law (usually damages) will adequately compensate the injured plaintiff”].) Finally, as to the request for “related declaratory relief that no agreement or enforceable obligation to arbitrate exists,” moving parties cite no authority allowing this court to issue declaratory relief on an ordinary noticed motion. (<i>Nisei Farmers League v. Labor & Workforce Development Agency</i> (2019) 30 Cal.App.5th 997, 1019–1020 [trial court properly denied motion for “partial declaratory relief ... on the procedural ground that there is no stand-alone dispositive motion for declaratory relief authorized by the Code of Civil Procedure or elsewhere, and the trial court pointed out that if plaintiffs wanted to pursue such relief by a motion procedure it should have done so under the recognized process of a motion for judgment on the pleadings and/or a motion for summary judgment or adjudication”].) The Case Management Conference is VACATED, and this case is set for a Court Trial on November 5, 2027, at 11:00 a.m. in Department C12. Defendant shall give notice.
--	--